Terms of Reference for the Ministry of Health Review of the Manage My Health Cybersecurity Incident 22 January 2026

Background

On 30 December 2025, a cybersecurity incident was identified involving the Manage My Health (MMH) patient portal, resulting in unauthorised access to clinical documents and personal health information of over 120,000 individuals. The Minister of Health has commissioned a Ministry of Health-led review of the MMH data breach. The review is to commence no later than 30 January 2026.

Purpose of the review

The purpose of the review is to:

a) assess the cause(s) of the incident

b) review the adequacy of the data protections that were in place and the MMH and Health New Zealand (Health NZ) response to the incident

c) recommend any improvements required to prevent similar incidents.

Objectives

The review will:

a) set out the role and operating model of MMH, including how it interacts with the other health sector participants (eg, patients, general practices, hospitals)

b) identify the root cause(s) of the incident, including any technical and procedural failures that may have contributed to the MMH data breach

c) assess the adequacy, timeliness, coordination, and escalation of response actions by MMH and Health NZ

d) evaluate MMH's security controls relative to industry norms

e) recommend specific, actionable improvements required to strengthen cybersecurity resilience.

Scope of work

As commissioned by the Minister of Health, this review will focus on the technical failures leading to the breach, the adequacy of security measures at the time, and the effectiveness of the breach response. Areas of review include:

1 Technical assurance, root cause and security failures

- adequacy and accuracy of MMH's root cause analysis (including the validation)
- the vulnerability in the Health Documents module and reasons it remained unaddressed
- data protection practices, including encryption at rest and in transit
- adherence to cybersecurity standards and good practice
- past audit findings or warnings and whether these were acted upon
- MMH capability and capacity to manage a critical health-records platform securely.

2 Incident response

- timeliness and clarity of communications to affected patients, primary care, and the public
- accuracy of timelines and commitments made during the response
- adequacy of containment, notification, and escalation processes
- support provided to high-risk/vulnerable patients and general practices.

3 Security standards and compliance assessment

- audit MMH security architecture against relevant codes and frameworks
- assess whether the sensitivity of stored information was matched by an appropriate standard of protection.

4 Interoperability and sector integration risks

- how MMH integrates with Health NZ systems and risks arising from these connections
- whether vulnerabilities found in MMH may be present across other patient portals
- systemic risks across the private patient portal ecosystem.

5 Data lifecycle, retention, and technical debt

- reasons historical data remained on internet-facing infrastructure
- MMH data deletion and account closure processes
- risks associated with orphaned or inactive patient data.

Methodology

The review will:

- undertake a desktop technical assurance assessment of MMH, including a review of related documentation and artefacts
- conduct structured interviews with key stakeholders in MMH and Health NZ
- perform technical and architectural analysis
- benchmark MMH practices against sector and international standards
- engage with MMH and Health NZ only once ongoing response efforts have ended.

Deliverables

a) **Interim Findings Report:** Key issues requiring urgent attention.

b) **Final Review Report:** Full findings, root cause analysis, assessment of response adequacy, risks, and actionable recommendations to prevent similar incidents.

Exclusions

The review does not include:

- the All-of-Government response to the incident
- recommendations for broader sector-wide reforms beyond recommendations directly linked to this incident regarding the security of health data (refer to 'Alignment with other reviews and cross-agency coordination' section below).

Timeframes

The technical assurance element of the review will commence on **30 January 2026** and be completed **by 28 February 2026.**

This will inform the other review areas and expected timeframes, but with final report expected on **30 April 2026,** dependent on interim findings.

Confidentiality and classification

All materials, discussions, and findings will be handled in accordance with government information security requirements. Information will be marked with the classification 'In Confidence' unless otherwise directed.

The Ministry of Health will not be making any public comment while the review is underway and before a report has been tabled with the Minister.

Alignment with other reviews and cross-agency coordination

Other parallel reviews and investigations related to the MMH incident are underway or anticipated, led by other agencies. Coordination is required to:

- minimise unnecessary duplication where possible and support alignment of findings, noting that some overlap may be unavoidable
- reduce the burden on Health NZ and MMH who may need to engage with multiple review bodies
- ensure assumptions, data sources, and timelines are appropriately aligned across the various pieces of work
- share insights and leverage relevant findings from other reviews, while still maintaining the required independence of each review.

Privacy Commissioner Independent Inquiry

The Privacy Commissioner has announced that he will be carrying out an independent Inquiry under s17(1)(i) into the cyber incident affecting MMH.

The Privacy Commissioner regulates the health sector's collection, use and management of personal health information. The purpose of the independent Inquiry is to establish the circumstances of the cyber security breach, the impacts on affected individuals, compliance with relevant standards and compliance with the Privacy Act. This includes the policy, contractual, and governance arrangements in place at the time of the breach between MMH, Health NZ, primary care providers, Primary Health Organisations, and other health sector agencies. The Privacy Commissioner's Inquiry powers include the power to summon persons and to require information and documents.

The Privacy Commissioner's Inquiry will be independent of, but able to draw from, any reviews or investigations that have information pertinent to his lines of inquiry. The Inquiry will inform the Commissioner's advisory or compliance actions, decisions regarding investigation and conciliation of complaints from individuals or their representatives, and recommendations for improvement at the agency, sector and system level.